

***IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION***

WRIT PETITION NO. 3111 OF 2019

1. Dharma Damodar Jagzap
Age: 52, Occupation: Private Service
Waiting No: 1103
Application No: 200953
Residential Address: Kalewadi Pune 17
Tq. Haveli. Dist.- Pune.
2. Ravi Tukaram Shelar
Age: 43 Occupation: Majuri
Waiting No: 2875
Application No: 103780
Residential Address: Rahatani.
3. Shivaji Rajendra Shendge
Age: 34 Occupation: Driver
Waiting No: 403
Application No: 104128
Residential Address: Transport
Hos. Soc. Rupinagar.
4. Popat Bhaguji Gujarg,
Age: 43 Occupation: Majuri
Waiting No: 2564
Application No: 104127
Residential Address: Hanuman
Hos. Soc. Rupinagar.

5. Naganath Subhash Bhosale
Age: 37 Occupation: Majuri
Waiting No: 1586
Application No: 40059
Residential Address: Patilnagar
Chikhali Gaon.
6. Satyabhama Narsing Mathur
Age: Major, Occupation: House Wife
Waiting No: 165
Application No: 207244
Residential Address: Sant Tukaram Nagar
Pimpri.
7. Vilas Baliram Choudhari
Age: 53, Occupation: Private Service
Waiting No: 2959
Application No: 306955
Residential Addresss: Dighi Road.
8. Rajeshri Dattaram Shinde
Age:62 Occupation: Fruitseller
Waiting No: 3250
Application No: 102060
Residential Address: Kalbhornagar
Chinchwad.

9. Nanda Chandrakant Epte
Age: 51 Occupation: Majuri
Waiting No: 3094
Application No: 207710
Residential Address: Kalbhornagar
Rajaram Chal.
10. Sunanda Sidhu Todkar
Age: Major, Occupation: Majuri
Waiting No: 1875
Application No: 100667
Residential Address: Kalbhornagar
Chinchwad.
11. Panchnathan Krushna Muniyan
Age: 54 Occupation: Labor
Waiting No: 203
Application No: 208654 Residential
Address: Kharalwadi
Pimpri.
12. Jayshri Pradhan Wagh
Age: 43 Occupation: Labor
Waiting No: 4575
Application No: 204641
Residential No: Pavna Nagar
Juni Sanghvi.

13. Baliram Jatriram Jayaswara
Age: 43 Occupation: Labor
Waiting No: 3066
Application No: 102315
Residential Address: Pawarwasti
Chikhali.
14. Rajiya Hashmoddin Mujawar
Age: 64 Occupation: Majuri
Waiting No: 3781
Application No: 206441
Residential Address: Pirjadechal
Nehrunagar.
15. Chandrakant Gorakh Gailwad
Age: 52 Occupation: Majuri
Waiting No: 4717
Application No: 206302
Residential Address: Hiranman Landge Chal
Bhosari.
16. Sanjay Tukaram Khedekar
Age: 46 Occupation: Majuri
Waiting No: 2670
Application No: 200388
Residential Address: Pawar Nagar
Thergaon.

17. Ratan Arun Gaikwad
Age: Major, Occupation: Majuri
Waiting No: 1089
Application No: 206453
R/at: Nehrunagar, Pimpri
Mauli Niwas.
18. Ashok Makaji Kadam
Age: 55, Occupation: Majuri
Waiting No: 1506
Application No: 206024
R/at: Balasaheb Jawalkar Chal
Kasarwadi.
19. Shiva Bhimrao Halimani
Age:42 Occupation: Majuri
Waiting No: 2316
Application No:401035
R/at: Hausai Soc.
Chikhali.
20. Balu Ramdas Patil
Age: 50 Occupation: Majuri
Waiting No: 2413
Application No: 200655
Residential Address: Vijaynagar
Kalewad.

21. Shubhash Rambhau Kshirsagar
Age: 61 Occupation: Majuri
Waiting No: 1677
Application No: 104837
Residential Address: Kudalwadi
Chikhali.
22. Ravindra Bajali Ingale
Age: 51 Occupation: Majuri
Waiting No: 2210
Application No: 204415
Residential Address: Pandit Gujar Chal
Thergaon.
23. Kaluram Kondibhau Kadam
Age: 45 Occupation: Gataikam
Waiting No: 171
Application No: 208734
Residential Address: Mahatmafulle Shalejaval
Bhosarigaon.
24. Vanita Yashwant Joshi
Age: 56 Occupation: Majuri
Waiting No :3913
Application No: 305912
Residential Address: Vithoba Lande Chal
Ghavane Wasti.

25. Sanjay Shankar Shinde
Age: 43 Occupation: Majuri
Waiting No: Application No: 205766
Residential Address: Humannagar, Bhagatwasti
Bhosari.
26. Popat Anandrao More
Age: 62 Occupation: Majuri
Waiting No: 1717
Application No: 207598
Residential Address: Fuge Chal
Khandoba Mal Bhosari.
27. Santosh Dattaram Desai
Age: 45 Occupation: Majuri
Waiting No: 1397
Application No: 103781
Residential Address: Ramnagar
Chinchwad.
28. Prabhakar Lahu Gadave
Age: 47 Occupation: Majuri
Waiting No: 3134
Application No: 306415
Residential Address: Gurudatta Colony
Gavlinagar Bhosari.

29. Suresh Ananda Bhalerao
Age: 49 Occupation: Majuri
Waiting No: 1175
Application No: 208076
Residential Address: Gavali Chal
Bhosari.
30. Vitthal Janaji Kadu
Age: 50 Occupation: Majuri
Waiting No: 629
Application No: 100912
Residential Address: More Wasti
Chikhali.
31. Ashok Naghnath Prakshale
Age: Occupation: Welder
Waiting No: 453
Application No: 100863
Residential Address: Dattanagar
Chinchwad.
32. Sahebrao Bhaurao Borale
Age: 42 Occupation: Majuri
Waiting No: 929
Application No: 206408 Residential
Address: Sangam Bekary, Alandi Road
Bhosari.

33. Lata Manohar Vanjare
Age: 52 Occupation: Majuri
Waiting No: 4487
Application No: 207006
Residential Address: Bvale Niwas
Keshawnagar Kasarwadi.
34. Pushpa Sahdev Bhalchakra
Age: 66 Occupation: Majuri
Waiting No: 1775
Application No: 200659
Residential Address: Jyotiba Nagar
Kalewadi.
35. Shahaji Dhanu Raut
Age: 40 Occupation: Majuri
Waiting No: 2108
Application No: 100384
Residential Address: Indrayani Hos. Soc.
Rupinagar.
36. Ramesh Govind Namdas
Age: 44 Occupation: Majuri
Waiting No: 1192
Application No: 100384
Residential Address: Vikas Hos. Soc.
Rupinagar.

37. Anant Mahadev Yadav
Age: 37 Occupation: Majuri
Waiting No: 37
Application No: 2636
Residential Address: Aadrsh Nagar
Kalewadi, Pimpri.
38. Atul Narayan Jadhav
Age: 47 Occupation: Majuri
Waiting No: 117
Application No: 300040
Residential Address: Ganraj Colony,
Rahatani
39. Tanaji Nagoji Vaidya
Age: Major, Occupation: Majuri
Waiting No: 9707
Application No: 206812
Residential Address: Gavali Nagar
Bhosari.
40. Sudhakar Vikram Ingale
Age: 48 Occupation: Majuri
Waiting No: 241
Application No: 207324
Residential Address: Gulvewasti
Bhosari.

41. Ramesh Baji Gurav
Age: 46 Occupation: Majuri
Waiting No: 2502
Application No: 305983
Residential Address: Sant Tukaram Nagar
Pimpri.
42. Bharat Ishwar Kadam
Age: 36 Occupation: Majuri
Waiting No: 302
Application No: 209804
Residential Address: Ganesh Nagar
Chikhali
43. Kalim Mansur Khan
Age: 40 Occupation: Majuri
Waiting No: 2269
Application No: 102462
Residential Address: Dyaneshwar Colony,
Akurdi.
44. Sunil Gautam Oval
Age : 44 Occupation: Majuri
Waiting No: 1088
Application No: 203027
Residential Address: Sadguru Colony
Wakad Road, Pune.

45. Babasaheb Raosaheb Rokade
Age :44 Occupation: Majuri
Waiting No: 1042
Application No: 100468 Residential
Address: Ballaleshwar Hos. Soc.
Rupinagar,
46. Shubhangi Gulab Waghmare
Age:44 Occupation: Majuri
Waiting No: 1190
Application No: 208017
Residential Address: Pavna Nagar
Pimple Gurav.
47. Tanaji Vishnu Avaghade
Age: 60 Occupation: Majuri
Waiting No: 831
Application No: 400703
Residential Address: Ramnagar
Chinchwad
48. Anil Kisanrao Bansode
Age: 49 Occupation: Majuri
Waiting No: 4832
Application No: 100515
Residential Address: Ajinthanagar
Chinchwad.

49. Suleman Badshaha Attar
Age: 49 Occupation: Majuri
Waiting No: 2641
Application No: 101080
Residential Address: Ajinthanagar
Chinchwad.
50. Suresh Krushna Gavas
Age: 55 Occupation: Majuri
Waiting No: 241
Application No: 201105
Residential Address: Pimple Saudagar
Katewasti.
51. Manikrao Laxaman Borade
Age: 64 Occupation: Majuri
Waiting No: 237
Application No: 401942
Residential Address: Ramnagar
Chinchwad.
52. Jijabai Uddhav Waghmare
Age: 46 Occupation: Majuri
Waiting No: 4213
Application No: 400802
Residential Address: Mahadev Nagar
Chikhali.

53. Sunita Sunil Bhalerao
Age: 44 Occupation: house work
Waiting No: 3209
Application No: 208933
Residential Address: Sant Tukaram Nagar.
54. Sudhir Samuyal Gaikwad,
Age: 62 Occupation: Tea Center
Waiting No: 3119
Application No: 208934
Residential Address: Mahesh Nagar
Pimpri.
55. Suhas Raghu Jagtap,
Age: 45 Occupation: Majuri
Waiting No: 3067
Application No: 306398
Residential Address: Ramnagar
Chinchwad.
56. Chandrakant Shirvram
Medhekar, Age: 49
Occupation: Majuri
Waiting No: 2232
Application No: 203840
Residential Address: Vijaynagar
Kalewadi.

57. Balbhim Kashinath Surte
Age: 45 Occupation: Majuri
Waiting No: 832
Application No: 106126
Residential Address: Ashok Nagar
Pimpri.
58. Sham Ganpat Gaikwad
Age: 46 Occupation: Majuri
Waiting No: 1771
Application No: 106326
Residential Address: Ramnagar
Chinchwad.
59. Shrikrushna Bhaurao Datar
Age: 46 Occupation: Majuri
Waiting No: 2119
Application No: 200264
Residential Address: Nakhate Wasti
Rahatani.
60. Subhash Ramchandra Rangale
Age: 49 Occupation: Majuri
Waiting No: 2087
Application No: 204296
R/at- Thergaon Gaothan Barne Chal.

61. Ram Motilal Palhare
Age: 59 Occupation: Majuri
Waiting No: 2492
Application No: 202053
R/at- New Dattanagar
Wakad.
62. Naginaram Sriram Jeswal
Age: Major, Occupation: Painter
Waiting No: 4751
Application No: 103407
R/at- Shivnagari, Baljinagar.
63. Pravin Eknath Gadhari
Age: 42, Occupation: Majuri
Waiting No: 165
Application No :305974
Residential Address: Shastrichowk
Bhosari.
64. Pal pannapal Dikkipal
Age: 42 Occupation: Majuri
Waiting No: 977
Application No:205959
Residential Address: Gulviewasti
Bhosari.

65. Aasaram Bhanudas Valvale
Age :51, Occupation: Majuri
Waiting No: 1005
Application No: 202612
R/at: Adinath Colony, Shrinagar
Kalewadi.
66. Shakuntala Madhukar Dhumal
Age: 64, Occupation: Labor
Waiting No: 2670
Application No: 200722
R/At: Vijaynagar, Kalewadi Samarth Colony.
67. Yashwant Vishwanath Ranvare
Age: Major, Occupation: Majuri
Waiting No: 400
Application No: 305598
Residential Address: Pisal Chal
Nehrunagar.
68. Sanjay Timaji Dhokane
Age: 43 Occupation: Majuri
Waiting No: 1526
Application No: 305137
Residential Address: Khandobamal
Bhosari.

69. Mahatma Goraba Bhalerao
Age: 55, Occupation: Majuri
Waiting No: 980
Application No: 101760
Residential Address: Ajenthanagar
Chinchwad.
70. Baliram Bhikaji Kharat
Age: 57, Occupation: Majuri
Waiting No: 880
Application No: 209802
Residential Address: Falunagar
Bhosari.
71. Yogini Hariprasad Varma.
Age:48, Occupation: House
wife Waiting No: 150
Application No: 206649
Residential Address: Gavalimatha
Bhosari.
72. Ambadas Ganpat Konkale
Age: 45, Occupation: Majuri,
Waiting No: 2291
Application No: 401598

R/at: Patilnagar, Chikhali, Dedu
Alandi Road.

73. Dinesh Sadashiv Bhagat
Age: 44, Occupation: Majuri
Waiting No: 797
Application No: 104601
Residential Address: Ramnagar
Chinchwad.
74. Bhagwat Kachru Bochara
Age: 49, Occupation: Majuri
Waiting No: 2816,
Application No: 208634
R/at: Sambajinagar, Alandi Road
Bhosari.
75. Bharat Bapu Bhosale
Age: 51, Occupation: Majuri
Waiting No: 262
Application No: 200447
Residential Address: Anand Park
Pimple Gurav.
76. Pravin Ravindra Suryanshi
Age: 38, Occupation: Majuri
Waiting No: 1223
Application No: 200466
R/at:Pavana Nagar, Kalewadi

Pimpri.

77. Bhaskar Rajaram Shirsath
Age: Major, Occupation: Majuri
Waiting No: 2459
Application No: 200427
Residential Address: Shriram Colony
Kalewadi.
78. Sunanda Tukaram Shinde
Age: Major, Occupation: Majuri
Waiting No: 1708
Application No :202839
R/at: Amardeep Colony, Shrinagar
Rahatni.
79. Iman Rajjak Attar
Age -Major, Occupation:
Majuri, Waiting No: 1696
Application No: 105121
Residential Address: Ajinthanagar
Chinchwad.
80. Rajendra Vasant Bharate
Age: 44, Occupation: Majuri
Waiting No: 3458
Application No: 101372
Residential Address: Shivnagari
Bajalinagar.

81. Monahar Balu Parte
Age: 68, Occupation: Majuri
Waiting No: 2092
Application No: 204280
Residential Address: Kudale Chal
Pimprigaon.
82. Shakuntala Ramdas Mane
Age: 51, Occupation: Majuri
Waiting No: 5919
Application No: 205756
Residential Address: Vadarwadi
Nehrunagar
83. Chakranarayan Vilas Bhaskar
Age: 48, Occupation: Majuri
Waiting No: 663,
Application No: 205720
Residential Address: Aadarshnagar
Dighi.
84. Ramesh Dagdu Gaikwad
Age: 50, Occupation: Majuri
Waiting No: 2261
Application No: 401353
Residential Address: Dattanagar
Wakad.

85. Sulochna Shankar Shiras
Age: Major, Occupation: Majuri
Waiting No: 4660
Application No: 305733
Residential Address: Bhimanagar, Moshi
Chikhali.
86. Mahananda Shantaram Aalhat
Age: 58, Occupation: Majuri
Waiting No: 4176
Application No: 305734
Residential Address: Bhimnagar
Alandi.
87. Shardul Dagubai Namdev
Age: 55, Occupation: Majuri
Waiting No 902
Application No: 201894
R/at:Shastrinagar, Pawar Chal
Rahatni.
88. Ramchandra Malu Chavan
Age: 63, Occupation: Majuri
Waiting No: 3158
Application No: 105474
Residential Address: Vijaynagar
Kalewadi.

89. Bhimchandra Laxmanrao Zadate
Age: 42, Occupation: Majuri
Waiting No :926
Application No: 208204
Residential Address: Hanuman Nagar
Bhosari.
90. Sanjay Manik Kamble
Age: 46, Occupation: Majuri
Waiting No: 1105
Application No: 201473
Residential Address: Shivtirth
Nagar, Thergaon.
91. Baburao Sanmukhppa Shivshankar
Age: Major, Occupation: Labor
Waiting No: 1157
Application No: 200908
Residential Address: Thergaon.
92. Siddharth Namdev Jadhaav.
Age: 45, Occupation: Majuri
Waiting No :1315
Application No: 202837
Residential Address: Shrinagar
Rahatni

93. Gautam Laxman Rankhamde
Age:Major, Occupation: Majuri
Waiting No 238
Application No: 208410
Residential Address: Aadarshnagar
Pimpri.
94. Ambadas Shivayya Telang.
Age: 49, Occupation: Majuri
Waiting No: 157
Application No: 208738
Residential Address: Dhawadewasti
Bhosari.
95. Balasaheb Devram Shelke
Age: Major, Occupation: Majuri
Waiting No :225
Application No: 201479
Residential Address: Kalewadi.
96. Bibhishan Sarjerao Pawar
Age: 46, Occupation: Majuri
Waiting No: 4509
Application No: 205220
Residential Address: Tukai Nagar
Bhosari.

97. Dattatray Arjun Mahalgi
Age: 54, Occupation: Majuri
Waiting No: 2807
Application No: 202621
Residential Address: Tapkarnagar
Kalewadi.
98. Ravindra Madhukar Gaikwad,
Age- Major, Occu- labor
R/at-Jotibanagar
Pune.
99. Narendra Shriram Mamurde
Age: Major, Occupation: Majuri
Waiting No: 4138
Application No:200036
Residential Address: Pimprigaon.
100. Sikandar Aabalal Mujavar
Age: 39, Occupation: Majuri
Application No: 204183
Residential Address: Pachpir Chouk
Kalewadi.

101. Bhima Subhash Kamble
Age: 49, Occupation: Gataikam
Waiting No: 1162
Application No: 208732
Residential Address: Bhosari
Pune.
102. Shubhangi Bhasakar Gaikwad
Age: Major, Occupation:
Waiting No: 2921
Application No: 305116
R/at: Nehrunagar, Pimpri
Pune 18.
103. Salve Sunil Sada
Age: major, Occupation: Nokari
Waiting No: 1417
Application No: 200836
Residential Address: Jyotibanagar
Kalewadi.
104. Dhaygude Prakash Maruti
Age: 44, Occupation: Majuri
Waiting No: 172
Application No: 205836
Residential Address: Dhawadewasti
Bhosari.

105. Anant Sitaram Aarolkar
Age: 46, Occupation: Majuri
Waiting No: 2625
Application No: 204097
Residential Address: Pimprigaon.
106. Eknath Tukaram Pawar
Age: 43, Occupation: Majuri
Waiting No: 2531
Application No: 203878
Residential Address: Pimprigaon.
107. Pandurang Narayan Gaikwad,
Age: 45, Occupation Majuri
Waiting No: 3823
Application No: 102114
Residential Address: Chikhali
Akurdi.
108. Yuvraj Bansilal Mistari
Age: Major, Occupation: Majuri
Waiting No : 1213
Application No: 201100
Residential Address: Rahatni
Ramnagar.

109. Yamuna Panit Thorat
Age: Major, Occupation Majuri
Waiting No: 1339
Application No: 208733
Residential Address: Landhe Chal
Bhosari.
110. Shaligram Baliram Band
Age: Major, Occupation: Labor
Waiting No: 3064
Application No: 295232
Residential Address: Mohanagar
Bhosari.
111. Kishor Wamanrao Borkhade
Age: Major. Occupation : Labor
Waiting No: 1537
Application No: 202137
Residential Address: Dapodi
Mahatmafulle Nagar.
112. Kashinath Daga Wagh,
Age: Major, Occupation: Labor
Waiting No: 2012
Application No: 209517
Residential Address: Saipark
Dighi.

113. Dinesh Ananda Wagh
Age: Major, Occupation Labor
Waiting No:2989
Application No: 205081
Residential Address: Bhosari
Pune.
114. Patil Nandakumar Ramchandra
Age :major, Occupation: Labor
Waiting No: 4746
Application No: 206466
Residential Address: Bhosari
Sitaram Londhe Chal.
115. Anand Dhondiram Sherkhane,
Age: Major Occupation: Labor
Waiting No: 1221
Application No: 202803
Residential Address: Padwalnagar
Thergaon.
116. Sitaram Barke Salvi,
Age:Major, Occupation: Labor
Waiting No: 3624
Application No: 208916
Residential Address: Nehrunagar
Pimpri.

117. Rais Nasibulla Ansari,
Age:Major, Occupation: Labor
Application No: 307022
Residential Address: Kalewadi
Pimpri.
118. Shivaji Sitaram Bhujbal
Age:Major, Occupation: labor
Waiting No: 2088
Application No: 208965
Residential Address: Bhosari.
119. Anil Baliram Palhare
Age:Major
Occupation: Private Service
R/at: Pimpri.
120. Vilas Shankar Kadam,
Age: 52, Occupation:Private Service
Waiting No:1344
Application No: 205872
Residential Address: Bhosari.
121. Balu Babu Madhure
Age:48, Occupation: Majuri
Waiting No: 3023
Application No: 104729
Residential Address: Kasarwadi.

122. Dadabhau Baban Takalkar,
Age:60, Occupation: Private Service
Waiting No: 2738
Application No: 400952
Residential Address: Bhosari.

123. Kaluram Raghunath Wagh
Age: 48, Occupation -Majuri
Waiting No: 4464,
Application No: 206088
Residential Address: Bhosari.

124. Parshuram Soma Rathod,
Age:48, Occupation: Majuri
Waiting No:392
Application No: 108502
Residential Address: Nigdi.

125. Ashok Rawan Parve
Age: 22, Occupation: Private Service
Application No: 400871
Residential Address: Chikhli.

126. Pravin Kshirsagar Kamble
Age: 49, Occupation: Majuri
Waiting No: 1151
Application No: 100215
Residential Address: Talawde.

127. Siddharth Sampatti Sawant
Age:44, Occupation: Private Service
Waiting No: 803
Application No: 208206
Residential Address: Sant Tukaram Nagar.

128. Santosh Krishna Gaikwad
Age:52, Occupation: Private Service
Waiting No: 1642
R/at: Bhosari.

129. Bhagwanta Mahadev Ramteke
Age: 55, Occupation: Private Service
Waiting No: 947
Application No: 206930
Residential Address: Bhosari.

130. Suryakant Vasant Bhojane
Age: 48, Occupation: Majuri
Waiting No: 4495
Application No: 206837
Residential Address: Bhosari.

131. Laxman Manohar Mujmule
Age: 42, Occupation: Majuri
Waiting No: 834
Application No: 105913
Residential Address: Kalewadi.
132. Khemraj Rajput,
Age-Major
R/at-Nehrunagar, Pimpri
Pune.
133. Sangita Pramod Sonavane
Age: Major, Occupation: Labor
Waiting No: 2472
Application No: 100278
Residential Address: Chikhali.
134. Ravindra Piran Indave,
Age: Major, Occupation: Labor
Waiting No:110
Application No: 205431
Residential Address: Ajmera
Road.
135. Sarika Ravindr Chakrnanarayan
Age: 38, Occupation: Anganwadi Sevika
Waiting No: 500
Application No: 107647
Residential Address: Morwadi, Pimpri

Pune 18.

136. Sanjay Sakharam Angre,
Age: 50, Occupation: Private Service
Application No: 207312
Residential Address: Chikhli.
137. Ramchandra Tukaram Humane
Age: 44, Occupation: Majuri
Waiting No: 4197
Application No: 200545
Residential Address: Shriram Colony
Kalewadi.
138. Rajendra Sakharam Manave
Age: 46, Occupation: Majuri
Waiting No: 3709
Application No: 203342
Residential Address: Jyotibanagar
Kalewadi.
139. Sunita Vijay Shingare
Age: 41, Occupation: Majuri
Waiting No: 1638
Application No: 107646
Residential Address: Morwadi, Pimpri
Pune 18.

140. Sikandar Pandurang Thorat
Age: Major, Occupation: Labor
Waiting No: 316
Application No: 105309
Residential Address: Shrinagar
Rahatni.
141. Shashikala Mohan Shinde
Age: 48, Occupation: House Work
Waiting No: 868
Application No: 207806
Residential Address: Bhosari.
142. Sunita Suresh Patil
Age: Major, Occupation: Majuri
Waiting No: 3132
Application No: 206551
Residential Address: Sant Tukaram Nagar
Pimpri.

...Petitioners

Versus

1. The Commissioner,
Municipal Corporation Pimpri Chinchwad
Office at PCMC Building, Pimpri
Dist.-Pune-411017.
2. The Municipal Corporation of the City
of Pimpri Chinchwad
having Office at PCMC Building, Pimpri

Dist.- Pune-411017
Through its Municipal Commissioner.

3. Asst. Commissioner
PCMC (Zopad Patti Improvement
Clearance and Rehabilitation)
Having Office at PCMC Building, Pimpri
Dist.-Pune-411017.
4. The State of Maharashtra
Through its Principal Secretary
Urban Development Department
Mantralaya
Mumbai-32.
5. The Secretary, (Housing)
Housing Development Department
Mantralaya
Mumbai-032.
6. The Union of India
through its Secretary to the
Ministry of Housing And
Urban Poverty Alleviation
New Delhi.

...Respondents

Mr. Subhash V. Gutte for the Petitioners.

Mr. Rohit Sakhadeo for the Respondent Nos.1 to 3-Municipal Corporation.

Smt. S.A. Prabhune, A.G.P. for the Respondent-State.

Mr. Dashrath Dattatraya Kamble, Assistant Commissioner, Pimpri

Chinchwad Municipal Corporation (PCMC) is present.

Mr. Anna Bodade, Deputy Commissioner, Pimpri Chinchwad Municipal Corporation (PCMC) is present.

***CORAM: BHARATI DANGRE &
MANJUSHA DESHPANDE, JJ.***

DATE : 29th JUNE 2026.

JUDGMENT (Per Manjusha Deshpande, J.) :

1. Rule. Rule is made returnable forthwith with the consent of the parties and is taken up for final disposal. Learned counsel appearing for the respondents waive notice on behalf of the respective respondents.
2. Heard learned counsel for the respective parties.
3. The petitioners 142 in number have approached this Court making a grievance that, there has been illegality in the allotment of houses under the Jawaharlal Nehru National Urban Renewal Mission ('JNNURM') launched by the Pimpri Chinchwad Municipal

Corporation at Chikhali ('PCMC'). They are also seeking directions to the respondent-authorities to allot them the vacant houses available under the Scheme. It is their grievance that the houses under the scheme have been allotted to the beneficiaries who did not fit into the criteria and were not eligible, therefore, prayer is made to initiate enquiry about the allotment through any retired District Judge or through any other capable agency.

4. The learned counsel Mr. Gutte for the petitioners submitted that, the petitioners are directly affected by the irregularities in the implementation of the scheme for allotment of houses to the economically weaker sections of Society under the 'JNNURM' Scheme.

5. The learned counsel submitted that the Government of India in the Ministry of Housing and Urban Poverty Alleviation has sanctioned the project. The scheme has been launched in 63 urban local bodies. The core focus of the policy is 'Housing for All' with

special emphasis on vulnerable sections of Society such as SC, ST, Backward Class, Minorities etc. in the Urban areas. In the meeting of Central Sanctioning and Monitoring Committee ('CSMC') guidelines for implementation of the project have been issued. He submitted that the ultimate object of the scheme was to cover the needy homeless people, who urgently require shelter. Therefore, the focus was on the most needy sections of Society. The allotment of such houses was required to be completed preferably within a period of 12 to 18 months.

In furtherance of the implementation of the scheme, the respondent Nos.1 to 3- Municipal Corporation passed a Resolution and prepared Detailed Project Report ('DPR') for 13,250 tenements. Each tenement was to constitute of 465 sq.ft. which was 1 BHK tenement with toilet/bathroom and open space. Certain conditions were stipulated for being eligible for allotment of those tenements. Since the scheme was for economically weaker sections of the society, one of the conditions was the monthly income of the applicant should be below Rs.5,000/-; and he should be a resident of Pimpri

Chinchwad Municipal area prior to 1st April 2005. So far as priority in allotment is concerned, it was decided that after scrutiny of the applications of the applicants who fits in all the criteria shall be entered in the Computer system and a computerized random number will decide the priority of the allotment. The applicants who did not find their name in the random computerized Select List, will get a Waiting List number. In case an applicant in the priority list refuses to take possession of the allotted tenement, the person in the Waiting List, as per the serial number can claim the tenement. However, this Waiting List shall contain only 10% of the applicants, who though qualified but did not find their name in the allotment list.

In order to select the beneficiaries the allotment draws were undertaken on 23rd August 2011. After undertaking the lucky draw, 13,775 beneficiaries were declared eligible to receive the benefit. The list of eligible and ineligible beneficiaries was displayed on the website of the Municipal Corporation on 6th July 2011. Amongst the eligible allottees in order to give the priority, again a draw was conducted, in which it was decided that 159 tenements shall

be allotted to the persons affected by road widening; 48 tenements shall be allotted to the in-eligible candidates from the slum rehabilitation; 163 applicants from BRT Project; 739 from the applicants belonging Scheduled Castes and 129 belonging to Scheduled Tribes along with the reservation for Blind/Handicapped and rest of the tenements belonging to the open category.

It is submitted that although in the initial policy it was decided that the individual beneficiary has to contribute his share to the extent of Rs.1,50,000/- this amount has been increased to Rs.3,76,000/- per tenement on 20th September 2010. Accordingly, the respondents-Municipal Corporation has communicated the enhanced contribution per tenement to the applicants from the Select List within one and a half months, vide communication dated 17th August 2011.

The petitioners submitted that for 13,250 tenements, 17,044 applicants have filed their applications and 13,775 applicants were declared to be eligible by the concerned department of Municipal Corporation. It is submitted that although the scheme was declared in the year 2007, the actual work of construction started in

the year 2009. Naturally the construction costs were increased. Therefore, the respondents had to increase the individual share of the beneficiaries for no fault on their part.

6. The learned counsel submitted that, possession of the tenements to the respective beneficiaries was handed over and even after that, out of 6720 tenements, about 400 tenements were vacant, this information was obtained by the petitioners under the Right to Information Act. He submitted that all the petitioners have been declared eligible to avail the benefit of the Scheme, accordingly their names are entered in the Waiting List of Second Phase of allotment, which is later on cancelled by the respondent No.2-Municipal Corporation.

It is submitted that when the petitioners have obtained information about the allotment of tenements, it was noticed there are various illegalities committed by the respondent-Municipal Corporation in the allotment of tenements by allotting it to the applicants who are ineligible due to following reasons such as (i) a

bogus residential proof ; (ii) beneficiaries are already owning houses and have given them on rent; (iii) irregularities in the allotment reserved for special categories, Slum Rehabilitation, BRT Project Affected, Blind/Handicapped etc.; (iv) bogus income documents showing income below Rs.5,000/- per month (v) beneficiaries owning four wheelers etc. Inspite the fraud played on the authorities to obtain benefit of the Scheme, no action is taken against them. It is submitted that by allotting the tenements to in-eligible persons the respondents have deprived the most needy and eligible persons like the petitioners. Even though the illegalities were brought to the notice of the authorities, no cognizance is taken of their complaint. The petitioners rely on various communications addressed to the authorities of Municipal Corporation.

7. Being aggrieved by the inaction of the Municipal Corporation the petitioners had approached this Court in Writ Petition No.14217 of 2017, with a prayer of enquiry into the illegalities of allotment by the respondents. The Writ Petition was

disposed of by this Court, vide order dated 15th February 2018 observing that, the relief claimed by the petitioners cannot be granted, since the petitioners have failed to make a proper representation to the Municipal Corporation. Therefore, by granting liberty to the petitioners to address a proper representation to the Competent Authority, and issuing directions to the Competent Authority to decide the eligibility of the petitioners for grant of benefit under the Scheme, the Writ Petition has been disposed of. In view of the directions issued by this Court on 15th February 2018, petitioner No.1 i.e. Secretary, Kastkari Kamgar Panchayat addressed a detailed representation dated 18th April 2018 to the respondent No.1, setting out the names of the ineligible beneficiaries with documentary evidence in support of their allegations.

8. It is submitted that since this Court had directed to decide the representation, if so made by the petitioners within a period of four months, the representation has been decided by the respondent No.1 on 10th August 2018. The decision by the respondent No.1

contains the beneficiary wise details of the allottees, the objection raised by the petitioners to the allotment and the remarks by the respondent No.1 after enquiry. In the enquiry conducted by the Municipal Corporation, the objection to the allotments was found to be incorrect, therefore it was not entertained. Being aggrieved by the decision, the petitioners have approached this Court, once again.

9. When the writ petition was heard by this Court on 5th October 2021, it was informed by the respondents that, although the petitioners representation has been decided on 10th August 2018, they have not challenged the said decision in the present writ petition, therefore, it would not be appropriate to once again agitate the same grievance about alleged illegal allotment made in the year 2011. It was also informed that only 5838 allottees have been allotted tenements, since some of the allottees have not come forward to accept the allotment and the respondent-Corporation has undertaken special drives against the original allottees for violation of the terms and conditions of allotment on receipt of any such complaints. The

process is on-going, therefore, once the original allottee either surrenders or is found to be ineligible, the persons from Waiting List would be accommodated in seriatim. In view of the statement made by the respondent-Corporation directions were issued to file additional affidavit setting out number of special drives undertaken by the Corporation with the notices issued to the allottees.

It is submitted by the learned counsel for the Corporation that, in response to the order passed by this Court on 5th October 2021 affidavit is filed by Assistant Commissioner of PCMC, informing this Court that, the inspections were carried out to find out *prima facie* violations of the terms of the Scheme. The inspection drive was undertaken on 4th September 2021 and 2nd October 2021, pursuant to it 1087 notices were issued, to the allottees, out of which 721 doors of tenements were found locked, 361 tenements were found to be rented and 5 tenements were found to be sold. 317 allottees have filed their reply to the notices. Out of 317 door locked tenement holders, 34 gave their replies and out of rented tenement holders, 280 filed their reply and 3 amongst who had sold, also filed their reply. 366

occupants were called for hearing. Notice of cancellation was issued to the tenement holders who were found to have sold their tenements.

It is further submitted that, in the intervening period due to on slot of Covid-19 they could not proceed further with the Special Drive. Subsequently some of the Wait Listed eligible beneficiaries have been allotted the tenements. A list of 452 allottees has been placed on record along with the affidavit. It is further informed that, the hearings have begun from 26th October 2021 and it is still going on, this being an on-going process. It is stated that once the orders of cancellation of allotment are passed, the process of eviction will follow and the Wait Listed Candidates will be considered. Since many of the allottees were not able to fulfill the conditions and procedure required to be followed before actual allotment, the Waiting List was already activated and infact 864 wait listed candidates were called upon to produce required documents, amongst which 452 wait listed allottees have been granted allotment and the process regarding 412 wait listed persons is under way.

10. Although the respondent-Corporation has given the details of the allotments made by them, the petitioners have yet again filed rejoinder raising some more issues, in response to which, the respondent-Corporation has filed an affidavit demonstrating in detail, the number of tenements available and the steps taken by the Corporation for allotment after cancellation of tenements due to ineligibility of the allottee tenement holders.

11. We have heard the respective parties and we have also gone through the various affidavits filed by the respondent-Corporation from time to time. On perusal of the prayer made by the petitioners, we find that the petitioners are seeking direction to produce record in respect of allotment of houses under the JNNURM; to direct the authorities to initiate enquiry through retired District Judge or any other independent agency for the irregularities in the allotment of houses in the Scheme; direction that this Court should consider the legality and validity of allotment of houses, which are

contrary to the scheme and based on bogus documents; direct the respondent to cancel allotments and such other prayers.

In order to invoke the powers of this Court under Article 226 of the Constitution of India, the petitioners have to establish their substantive rights and the corresponding duties by the authorities which have been breached of. In the present case, the petitioners do not have any vested right in respect of allotment of house provided under the Scheme that, has been violated by the PCMC. The procedure for allotment, along with the terms and conditions of eligibility are contained in the Scheme. The petitioners do not have any preferential right to claim tenement under the said Scheme. Their right is limited to the extent to make application and to be considered, if found eligible. Accordingly, they have been declared eligible and placed in Waiting List. The JNNURM scheme is a self-contained scheme which provides that the Waiting List shall operate once the eligible allottee either surrenders or declared ineligible.

The petitioners have approached this Court in the previous round by filing a Writ Petition on similar grounds, which has disposed of by this Court vide order dated 15th February 2018. This Court has observed that though a prayer is made by the petitioners seeking directions to the respondent to initiate enquiry as regards allotment made to 6720 persons, who are allegedly in-eligible, such sweeping relief cannot be granted to the petitioners, without even making a proper representation. Therefore, the writ petition was disposed of by granting liberty to the petitioners to make representation. The representation made by the petitioners pursuant to this order, has been decided by the respondent-Corporation on 10th August 2018. The action taken report by the authorities contained in Annexure 'A' to the decision of the Corporation contains the name of the allottee, the application number and the details of the objections raised by the petitioners in respect of that allottee and the remarks of the authorities on the aforementioned objection. The details of 249 such allottees is given in Annexure 'A'. However, the petitioners have not challenged this report and the decision of the Municipal Corporation.

Infact, the petitioners have once again raised the same grounds, as raised in the earlier writ petition which was decided by this Court. The respondents have filed their affidavit in response to the orders passed by this Court, the respondent-Corporation has filed an affidavit-in-reply informing this Court that, the JNNURM Scheme was not extended beyond 31st March 2015, by the Central Government. The Municipal Corporation had taken steps to make available land for the said Project by taking land from Pimpri Chinchwad New Township Development Authority ('PCNTDA'), to implement the JNNURM Scheme. According to the Corporation the petitioners are under an impression that they automatically become eligible for allotment under the Pradhan Mantri Awas Yojana ('PMAY'). The two Schemes are totally distinct and separate Schemes, their implementation is also independent of each other. It is stated that in the first phase, 6636 tenements have been included, however, the second phase is not capable of being implemented. It is stated that in the order dated 10th August 2018, all the objections raised by the petitioners against each individual beneficiary have been considered

and it was found that the objections raised by the petitioners were not sustainable. Even the subsequent affidavit demonstrates that the respondent-Corporation had responded to the objections raised by the petitioners from time. In one such affidavit dated 1st August 2022, filed through Assistant Commissioner (Slum Removal and Rehabilitation Department) of respondent No.2-PCMC in response to the issues raised by the petitioners in affidavit-in-rejoinder dated 23rd March 2022, a categorical statement is made that the Corporation has issued 721 notices to the allottees whose house was found locked during the survey conducted in month of September and October 2021. Amongst them 490 allottees filed their reply, some of them directly attended the hearing. After considering their response, the PCMC has concluded that there was no violation of condition No.17 of the Agreement. Similarly, 361 notices were also issued to those occupants, who *prima facie* were found to be doubtful. There was suspicion about their status as original allottees. After holding enquiry and considering their written submissions, it was decided to issue warning to them, since cancellation of tenement is a drastic step and

all the tenement holders are from deprived class with poor financial background. It was decided to grant them one more opportunity to abide by the terms and conditions of the scheme.

It is also stated that there are few practical difficulties in ascertaining whether the tenements are given on rent or otherwise. However, during the drive most of tenement holders have given their satisfactory explanation, therefore, their tenements were not cancelled.

Two allottees who were suspected to have illegally sold tenements were issued termination orders and both the tenement holders have challenged the termination order before the Civil Judge Junior Division, Akurdi and District Court, Shivajinagar, Pune.

12. Even after the explanation tendered by the Respondent-Corporation, the petitioners have once again filed rejoinder affidavit raising some more objections. The Respondent-Corporation has once again filed additional affidavit, pursuant to the order passed by this Court on 12th July 2023. In this affidavit, the respondents have given

details of the petitioners who have been allotted tenements under the Scheme. It is stated that 31 petitioners have been allotted the tenements and 7 more petitioners are also likely to be allotted in the next lottery as per the terms of the Scheme. It is stated that the allotment of petitioner No.111 could not be finalized due to certain compliances and 92 petitioners in the Waiting List are still awaiting their turn to be considered. Two petitioners are already declared ineligible for various reasons. A table has been placed along with the affidavit showing the status of the petitioners in the Waiting List. It is further stated that the persons who are presently in the Waiting List cannot be considered out of turn in violation of the procedure. The status of the petitioners in the current List has been annexed to the affidavit which contains even other beneficiaries who are not petitioners.

After this affidavit, when the matter was listed for hearing on 29th June 2026, the respondent-Corporation has produced the list of the petitioners who have been allotted flats under the Scheme and also a compliance report pursuant to the orders passed by this Court

vide order dated 11th June 2026. The said report contains the details of the complaints received against the implementation of the Scheme between 6th October 2021 to 24th June 2026. It contains three different complaints dated 20th June 2023, 29th August 2025 and one more complaint from one Bajrang Dhodiba Chougule and the action taken by the respondent-Corporation in response to such complaints. First complaint was found to be without any substance and therefore it was dismissed however in response to the complaint filed by Vishnu Unavane, which was about failure to occupy and use the tenement by the allottee in response to it, it was informed that the allottee has resumed his habitation in the tenement. The third complaint was received from 'Specially Abled Person' who was displaced by his cousin. In response to that the applicant was once again reinstated in the tenement.

After considering the prayers made in the writ petition and the response given by the respondent-Corporation in their reply affidavit, which demonstrates the positive steps taken by them in response to the various issues raised by the petitioners by undertaking

special drive. From the affidavits filed and the documents placed on record, we find that most of the grievance of the petitioners have already been redressed. 45 of the petitioners have already been accommodated by allotting them tenements. So far as the rest of the petitioners are concerned, we are informed that the Scheme has already been closed by the Central Government and the Waiting List will be operating, only in case the already allotted tenements become available due to surrender by the previous allottees. A statement is made on affidavit that, the 7 petitioners are likely to be accommodated.

As has been pointed out by the Respondent-Municipal Corporation, the petitioners have approached this Court previously in an identical Writ Petition being Writ Petition No.14217 of 2017, which was decided by this Court by declining to entertain the writ petition, however liberty was granted to the petitioners to make an appropriate representation to the respondent No.1 setting out the names of the persons who according to them are in-eligible for grant of benefits under the JNNURM Scheme and reason why they are in-

eligible. If such representation is made the respondent-authority was decided it within a period of four months from date of such representation. These directions have been issued on the background of the observations made by this Court that such sweeping relief cannot be granted when the petitioners have not even made a proper representation. Though this representation filed by the petitioners has been decided by the respondent-authority and has communicated it to the petitioners, with the remarks with regard each of the alleged ineligible allottee. In spite of that, the petitioners have not challenged the outcome of decision of their representation in the present writ petition. Therefore, the present writ petition agitating same grievance cannot be entertained. Upon going through the decision of the Municipal Corporation which is marked as Exhibit – 'A', we find that case of each of the allottee has been considered on its own merits. The objection in respect of those allottees and the proof produced by such allottee has been considered and accordingly the objections have been decided. The table of the allottees, their application number and objection along with the decision has been placed on record under the

signature of the Commissioner of the PCMC. Similar exercise is undertaken in respect of 249 allottees in the priority list, where the objection was that these applicants did not have the proof of residence prior to the year 2005, which was one of the necessary conditions for allotment. After scrutiny it was found that in case of all the allottees the proof was readily available. Having found that there is no illegality or irregularity in the allotment in the form of the report by the Commissioner, we find that even the prayer of the petitioners to entertain the prayer clause 'b', seeking a writ of mandamus or any other appropriate writ, direction and order in like nature to direct the Respondents authority to initiate enquiry through any retired District Judge or any independent agency in respect of the allotment of houses those are declared valid beneficiaries on the basis of accepting invalid residence proof of consent letter/ agreement of the house owner and allotted the houses to such beneficiaries under the scheme of Jawaharlal Nehru National Urban Renewal Mission (JNURM) launched by Pimpri Chinchwad Municipal Corporation, at Chikhali and further direct to submit the action taken report thereof before this

Court, is also not maintainable.

13. Apart from the aforementioned report even after filing of the present writ petition, in view of the orders passed by this Court from time to time, affidavits have been filed by the respondent-Municipal Corporation, bringing it to the notice of this Court that they have already undertaken a special drive to detect bogus allottees and also the details of the exercise undertaken by the Corporation in response to the directions of this Court dated 5th October 2021, as contained in the affidavit filed by the respondent-Municipal Corporation. In this affidavit it has been categorically stated that already 452 wait listed applicants from the 864 wait listed applicants have been given allotment letters and possession. The list of the allottees from the waiting list along with the priority serial number is annexed to the reply filed on 12th November 2021.

14. A further affidavit is filed in response to the order passed by this Court on 15th December 2022 giving details of the verification

drive undertaken by the respondent-authorities. Along with this affidavit the status of the petitioners in the waiting list as on 28th February 2023 has been given in a tabular form numbered as Exhibit – ‘T-1’. From the list of the petitioners, 45 petitioners have been already allotted according to the latest status report submitted before this Court on the date of this hearing. Since the scheme JNNURM is beneficial scheme introduced by the Central Government and implemented by the PCMC, it does not confer any preferential right on the applicants. Their only right is to make an application if they are found eligible for making application according to the prescribed norms. Even the applicants who are found to be eligible cannot make any claim for getting priority over others for allotment, since the scheme itself provides that after preparation of list of eligible applicants, the Computerised Random Number Generation Technique, shall give the priority to the applicants. Thus, it does not involve any human interference in such allotment and only after exhausting the priority list the applicants in the waiting list are to be considered. All the petitioners are applicants from the waiting list.

From the various affidavits filed by the respondents from time to time, it is demonstrated that, the authorities undertaken special drive from time to time against the in-eligible and bogus applicants, pursuant to that many of the applicants from the waiting list have been accommodated. Even 45 of the petitioners who are applicants, have already been considered and rest will have to await their turn. Since the petitioners do not have vested right in the scheme, it is not possible to keep the writ petition pending till all the applicants from the waiting list are exhausted. This Court cannot undertake a threadbare scrutiny of the applicants eligibility or ineligibility, it involves voluminous record which raises disputed claims; and particularly when the respondent has already undertaken that exercise and submitted its reports from time to time. The Municipal Corporation has already stated on affidavit that whenever the allotment of any of the ineligible applicant is cancelled, the waiting list will be operate.

Hence, in our view, considering that many of the petitioners have already been accommodated and rest are awaiting their turn, depending on the cancellation/surrender of previous allotment, and since the relief in the writ petition cannot be granted, in the manner sought, the writ petition is dismissed. Rule is discharged.

MANJUSHA DESHPANDE, J.

BHARATI DANGRE, J.